

24VECV03649 24VECV03649

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Case Number: 24VECV03649 Hearing Date: September 8, 2026 Dept: B

Tentative Ruling

Aura v. Shabnam, Case no. 24VECV03649

Hearing date September 8, 2026

Defendant Tarzana's Demurrer to the
SAC - UNOPPOSED

Defendant
Tarzana's Motion to Deem RFAs Admitted - UNOPPOSED

Plaintiff
Aura, in pro per, sues defendants Shabnam, M.D., and Tarzana Medical Center, LLC for medical practice. Defendant Tarzana demurs to the second amended complaint and moves to deem RFAs admitted. Both are unopposed.

Defendant Tarzana's Demurrer to the SAC

Plaintiff
Aura alleged "medical" and "motor vehicle" causes of action. Defendant Tarzana generally and specially demurred as unintelligible and uncertain. The unopposed demurrer was sustained with leave to amend. See 3/20/26 Min. Order.

Plaintiff's
first amended complaint alleged one cause of action for medical malpractice. Tarzana demurred generally and specially, arguing plaintiff failed to plead specific facts. The unopposed demurrer was sustained with leave to amend. See

6/18/26 Min. Order.

"The

function of a demurrer is to test the sufficiency of the complaint as a matter of law." *Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420. A complaint "is sufficient if it alleges ultimate rather than evidentiary facts," *Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550, but plaintiff must allege essential facts "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. *Doheny Park Terrace Homeowners Ass'n., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.

Plaintiff

now alleges "[t]he hospital staff especially 2 lady [sic] ignored when I asked to be seen by another Dr" and "the hospital staff failed to have me to [sic] see another Dr and kept giving me the wrong medication." SAC, p. 4. Plaintiff fails to identify what medications were not given, what medications were given incorrectly, or that the giving of the "wrong" medications resulted in her harm. Plaintiff fails to specifically allege the nature of her harm, merely alleging "I have been having on going health issue... my hospitalization at Tarzana medical center left me perment [sic] change." *Id.* This is insufficient to sustain a claim for medical malpractice and is fatally vague.

Plaintiff

alleges not all plaintiffs have been named. SAC, para. 1. If accurate, the SAC is defective for failure to name all parties in interest. Further, plaintiff alleges she "[d]id not take any action against Dr. Shabnam." *Id.* As Shabnam is a named defendant, it is unclear what plaintiff alleges. The SAC is fatally uncertain as to the intended and actual parties in this litigation. Plaintiff has been given three opportunities to clarify the pleadings and allege facts to sustain a cause of action. Further leave to amend would be futile. SUSTAINED without leave to amend.

Defendant Tarzana's Motion to Deem RFAs Admitted

Tarzana

moves to deem RFAs admitted and for monetary sanctions. As the court sustained the demurrer without leave to amend, Tarzana is dismissed; the motion is MOOT.